

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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SHAQUELLE TAITT,

Plaintiff,

-against-

15-cv-799 (SLT)(RML)

AMENDED COMPLAINT

JURY DEMAND

THE CITY OF NEW YORK, DETECTIVE
CEDRIC BROOKS (Tax # 937738), SERGEANT
DAVID RODGERS (Tax # 929058), POLICE
OFFICER JUSTIN SMITH (Tax # 947497),
POLICE OFFICER RONALD SANCHEZ
(Tax # 947454) and POLICE OFFICER DIETRICH
WILLIAMS (Tax # 937738),

Defendants.

-----x
SHAQUELLE TAITT (hereinafter "plaintiff"), by his attorney(s) The Law Offices of
Wale Mosaku, P.C., complaining of the defendants THE CITY OF NEW YORK,
DETECTIVE CEDRIC BROOKS (Tax # 937738), SERGEANT DAVID RODGERS
(Tax # 929058), POLICE OFFICER JUSTIN SMITH (Tax # 947497), POLICE
OFFICER RONALD SANCHEZ (Tax # 947454) and POLICE OFFICER DIETRICH
WILLIAMS (Tax # 937738) (hereinafter collectively referred to as "the defendants"),
alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and §1985], [and arising under the law and statutes of the State of New York].

JURISDICTION

2. The jurisdiction of this Court is invoked pursuant to 42 U.S.C. Section 1983, 28 U.S.C. Section 1343, 28 U.S.C. Section 1331, and

under the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

3. As the deprivation of rights complained of herein occurred within the Eastern District of New York, venue is proper in this district pursuant to 28 U.S.C. §1391 (b) and (c).

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

4. All conditions precedent to filing of this action have been complied with. On July 17, 2014, within ninety days after the claim(s) alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2014PI022742.
5. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.
6. This action, pursuant to New York State and City Law, has been commenced within one year after the happening of the event upon which the malicious prosecution claim is based.

THE PARTIES

7. Plaintiff is a black male of full age.
8. At all relevant times, defendants DETECTIVE CEDRIC BROOKS (Tax # 937738), SERGEANT DAVID RODGERS (Tax # 929058), POLICE OFFICER JUSTIN SMITH (Tax # 947497), POLICE OFFICER RONALD SANCHEZ (Tax # 947454) and POLICE OFFICER DIETRICH WILLIAMS (Tax # 937738) (hereinafter "defendant officers") were, and upon information and well-founded belief, still are law enforcement officers employed by the Police Department of the City of New York ("NYPD").

9. At all relevant times, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, and were acting under the color of their official capacity and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.
10. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
11. At all relevant times, the defendant City of New York was and is a municipal corporation duly organized and existing under the laws of the State of New York, and was the employer of the defendant officers through its Police Department, specifically the NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
Plaintiff sues all defendants in their individual and official capacities.

FACTUAL ALLEGATIONS

12. On May 2, 2014, at approximately 01:00 p.m., within a grocery (corner) store known as "Pal's Grocery & Deli", located within the premises described as 1031 Nostrand Avenue, Brooklyn, New York 11225, the plaintiff was falsely arrested by two of the defendant officers (hereinafter referred to as "the apprehending officers").
13. One of the apprehending officers was Black, or African-American, and the other one was White, or Caucasian.
14. Immediately prior to his arrest, the plaintiff was conversing with the owner of the store, while he was waiting for a sandwich order that he had placed to be prepared.
15. As the plaintiff was conversing with the owner/employee of the store, the apprehending officers entered into the store, and without warning, accosted the plaintiff.

16. In the process of apprehending the plaintiff, the Caucasian officer placed the plaintiff in a chokehold, as the African-American officer twisted the plaintiff's left arm into an unnatural position.
17. The plaintiff was thereafter violently forced to the ground, and thereafter placed in handcuffs.
18. After the plaintiff was arrested, he was taken by the apprehending officers to the 71st precinct, located at 421 Empire Blvd, Brooklyn, NY 11225.
19. Upon arrival at the 71st police precinct, the plaintiff was logged in at the front desk, and the "charge" that was entered in the Command log book was "violations".
20. Within the Command Log, the surname of defendant Police Officer Justin Smith was initially written as the "A/O" or arresting officer.
21. However, subsequently, the name "Smith" was crossed out, and the surname of defendant Police Officer Dietrich Williams was written in as the "A/O".
22. Of note is the fact that "C/O¹ Nostrand/Sterling" was indicated within the Command Log as the "Location of Arrest".
23. As set forth above, the plaintiff was not arrested at the corner of Nostrand Avenue and Sterling Street, but was in fact arrested within the subject location.
24. The plaintiff was then told to wait because a detective wanted to speak with him.
25. That the apprehending officers had unlawfully and illegally arrested the plaintiff pursuant to an Investigative Card ("I-card") (#"12014012322") that was issued and/or activated by defendant Detective Cedric Brooks on April 22, 2014.
26. Within the I-card, the plaintiff was described as a "Suspect Only - No PC to Arrest".

¹ Or "corner of".

27. After spending approximately 5 hours in jail, the plaintiff was told to "forget it, but you can't leave here without anything. Here is a ticket", and handed a summons for violating Penal Law Section 240.35(05) ("On school grounds without permission").
28. The summons was issued by defendant Officer Dietrich Williams.
29. Within said summons, defendant Officer Williams claimed that "at t/p/o deft was loitering on school grounds w/o permission during school time. Deft. Did not attend school in question. MS 61".
30. Officer Williams also falsely claimed that the plaintiff's purported offense occurred "opp 320 Sterling Street".
31. The above-referenced allegations were a complete fabrication.
32. Indeed, a search of "Google Maps" revealed that the premises that is actually opposite 320 Sterling Place, Brooklyn, New York 11225, is a playground that is run, maintained and/or administered by the NYC Parks Department called "Marc and Jason's Playground", which in fact, is not "school grounds".
33. In any event, the plaintiff had not entered into the "Marc and Jason's Playground" at any point in time prior to his arrest.
34. Pursuant to the mandate of above-referenced summons, the plaintiff was compelled to appear at 346 Broadway on July 29, 2014, in defense of the trumped up charges.
35. The summons number was 4411392942.
36. The summons was dismissed on July 25, 2014.

CAUSE OF ACTION AGAINST EACH DEFENDANT OFFICER: FALSE ARREST
AND FALSE IMPRISONMENT UNDER NEW YORK STATE LAW/42 U.S.C § 1983

37. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 36 of this complaint as though fully set forth herein.
38. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any

warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.

39. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.

40. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

CAUSE OF ACTION AGAINST DEFENDANT OFFICERS JOHN DOE 1-2:
EXCESSIVE FORCE UNDER 42 U.S.C § 1983

41. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 40 of this complaint as though fully set forth herein.

42. The level of force employed by the apprehending officers was unwarranted, objectively unreasonable, and in violation of the plaintiff's constitutional rights.

43. As a result of the aforementioned conduct of the apprehending officers, the plaintiff was subjected to excessive force resulting in physical injury.

44. Plaintiff hereby demands compensatory damages and punitive damages in an amount to be determined at trial, against the apprehending officers, individually and severally.

CAUSE OF ACTION AGAINST EACH DEFENDANT OFFICER:
FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

45. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 44 of this complaint as though fully set forth herein.

46. The defendant officers had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
47. The defendant officers failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
48. As a consequence of the defendant officers' actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION AGAINST THE DEFENDANTS: ASSAULT AND BATTERY

49. Plaintiff repeats and realleges paragraphs 1 through 48 as if each paragraph is repeated verbatim herein.
50. At the time of the above-referenced incident, the apprehending officers assaulted the plaintiff, battered the plaintiff, and subjected the plaintiff to excessive force and summary punishment.
51. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendants, individually and severally.
52. The apprehending officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendants acts as described above.
53. This action, upon information and belief, falls within one or more of the exceptions of CPLR 1602.

CAUSE OF ACTION AGAINST THE DEFENDANT CITY OF NEW YORK:
MUNICIPAL LIABILITY UNDER 42 U.S.C § 1983

54. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 53 of this complaint as though fully set forth herein.
55. The acts complained of were carried out by the defendant officers in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
56. The defendant officers acted under color of law, in their official capacity, and their acts were performed pursuant to the customs, policies, usages, practices, procedures and rules of the City of New York and its police department.
57. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and its police department include, but are not limited to the following unconstitutional practice(s): wrongfully arresting innocent members of the public pursuant to the unlawful issuance of "I-Card(s)".
58. That an I-card was and is an illegal and unconstitutional departmental tool utilized by the NYPD, wherein an investigating detective, such as Detective Cedric Brooks, who desires to question a member of the public, rather than seek an arrest warrant from a court of competent jurisdiction, prepares said I-card, and thereafter causes same to be dispersed and disseminated within the NYPD.
59. That the intent and practical effect of said I-card is to serve as a court issued arrest warrant.
60. That any member of the NYPD who becomes aware of said I-card (such as the apprehending officers), was and is trained to seek, arrest and detain the subject of the I-card (in this case the plaintiff) and thereafter present the subject of the I-card to the detective who issued the I-card (in this case Detective Cedric Brooks).

61. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, constituted a deliberate indifference to the safety, well-being and constitutional rights of all defendants, including but not limited to the plaintiff; were the proximate cause of, and moving force behind, the constitutional violations suffered by the plaintiff as alleged herein, and deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:

(a) The right of the plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.

(b) The right of the plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.

62. The defendant officers were the actual agents of the defendant City of New York and were following the customs, practices, ordinances and/or regulations of the City of New York when they violated the plaintiff's constitutional and civil rights, and the City of New York is therefore responsible for their acts, and liable to the plaintiff for the damages he suffered.

63. The actual principal/agent relationship between defendant City and the defendant officers was created by the fact they were employees of defendant City, and the City had the right to, and it did indeed regulate and control the activities and conduct of the defendant officers.

WHEREFORE, plaintiff respectfully prays judgment as follows:

1. For compensatory damages against all defendants in an amount to be proven at trial;
2. For exemplary and punitive damages against each defendant officer in an amount to be proven at trial;

3. For costs of suit herein, including plaintiff's reasonable attorney's fees; and;
4. For such other and further relief as the court deems proper.

DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38 (b) of the Federal Rules of Civil Procedure, plaintiff demands a trial by jury.

Dated: Brooklyn, New York
June 23, 2015

LAW OFFICES OF WALE MOSAKU, P.C.

By: /s/

Wale Mosaku (AM5872)
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To:

Noreen Stackhouse, Esq.
Assistant Corporation Counsel
New York City Law Department
Attorney(s) for Defendants
City of New York and Police Officer Dietrich Williams
100 Church Street
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Detective Cedric Brooks (Tax # 937738)
Defendant pro se
71st Precinct Detective Squad
421 Empire Boulevard
Brooklyn, New York 11225

Sergeant David Rodgers (Tax # 929058)
Defendant pro se
30th Precinct Detective Squad
451 West 151st Street
New York, New York 10031

Police Officer Justin Smith (Tax # 947497)
Defendant pro se
71st Precinct
421 Empire Boulevard
Brooklyn, New York 11225

Police Officer Ronald Sanchez (Tax # 947454)

Defendant pro se

71st Precinct

421 Empire Boulevard

Brooklyn, New York 11225

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EASTERN DISTRICT OF NEW YORK: 15-cv-799 (SLT)(RML)**

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Plaintiff,

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Defendants.

AMENDED COMPLAINT

**LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994**

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 201_

Attorney(s) for Defendants
